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DATE FILED: 3/13/2014

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Michael Watts

(In the space above enter the full name(s) of the plaintiff(s).)

AMENDED
COMPLAINT

under the Civil Rights Act,
42 U.S.C. § 1983

-against-

The City of New York

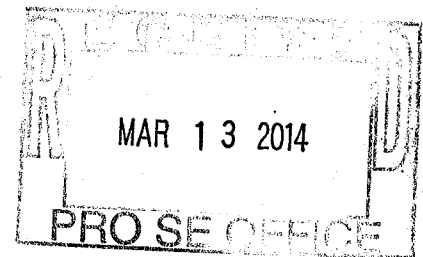
Detective Jose Higgo

Detective Santoro

Jury Trial: ☒ Yes ☐ No
(check one)

13 Civ. 5636 ()

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)



I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff's

Name

ID#

Current Institution

Address

Michael Watts

141-13-12340

OBCC

1600 Hazen Street
East Elmhurst, N.Y. 11370

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1

Name

Where Currently Employed

Address

Detective Jose Higgo

Shield #

Defendant No. 2 Name Detective SANTANA Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 3 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 4 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

Defendant No. 5 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur?

B. Where in the institution did the events giving rise to your claim(s) occur?

C. What date and approximate time did the events giving rise to your claim(s) occur?

JANUARY 17, 2013 4:00 AM

D. ¹⁻¹⁷⁻¹³ ^{Facts:} I was hit in the head several times with a assault rifle while my house was being robbed and my house was being robbed while I sat in the 79th precinct because of the negligence of my arresting officer Detective Higgs. and my car was stolen.

What happened to you?

Who did what?

Was anyone else involved?

Who else saw what happened?

Detective Santana entered my bedroom at 405 Thompson and hit me several times in the head with the assault rifle causing injuries to the head and ear. Detective Higgs took my money and keys out of my pants pockets instead of issuing a voucher or returning them to me he took it upon himself to give them to Tobias Lewis a well known crack head to the 79th precinct.

LaQuita Lewis, David Lewis, Franklin Lewis, and his girlfriend known only as GG who was caught with the stolen car, the rest robbed and vandalized my house.

Friends and ~~and~~ Neighbors also shown to Major

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received.

I was taken to New York Down Town Hospital where it was established that I suffered from contusions and hematoma (See Exhibits A & B) and C

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ☒ No ☐

some of it while I sat in the 79th Precinct I heard about it in phone conversations while I was in Brooklyn House and Rikers Island on Recorded conversations with LaQuita Lewis from phone # 347-965-4385 that belong to LaQuita Lewis.

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

The 79th Precinct

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ☐ No ☐ Do Not Know ☒

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ☐ No ☐ Do Not Know ☒

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ☐ No ☒

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ☒ No ☐

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

Civilian Complaint Review Board, N.Y.C. Dept. Invest.

1. Which claim(s) in this complaint did you grieve? The assault by

the police & the robbery of my house

2. What was the result, if any? N/A

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: The Jail is not responsible and it's out of their area

2. If you did not file a grievance but informed any officials of your claim, state who you informed, _____

when and how, and their response, if any: _____

- G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. The Civilian Complaint Review Board, 40 Rector Street
New York City Dept of Investigation P.O. Box 152
 Canal Street Station
- _____
- _____
- _____

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount).

I want the officer fired, the
other people arrested and I want compensated in
of \$ 200,000⁰⁰ for damages to my house and
furnishings, car and stolen property, pain suffering
mental, physical punitive and monetary damages

VI. Previous lawsuits:

- A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes ___ No ✓

On
these
claims

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes _____ No ☒

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 6 day of MARCH, 2014.

Signature of Plaintiff

Inmate Number

Institution Address

Michael Wells
141-13-12340
1600 Hazen Street
East Elmhurst, N.Y. 11370

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 6 day of MARCH, 2014, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Michael Wells

ExitCare® Patient Information - MICHAEL ZZ WATTS - ID# 00002920604 - MR# 6346959

NEW YORK DOWNTOWN HOSPITAL

New York Downtown Hospital
Emergency Center
83 Gold Street
New York, NY 10038
212-312-5070

EXITCARE® PATIENT INFORMATION

Patient Name: MICHAEL ZZ WATTSAttending Caregiver: Yao Tse Hwa

Bruise, Contusion, Hematoma

A bruise (*contusion*) or hematoma is a collection of blood under skin causing an area of discoloration. It is caused by an injury to blood vessels beneath the injured area with a release of blood into that area. As blood accumulates it is known as a hematoma. This collection of blood causes a blue to dark blue color. As the injury improves over days to weeks, it turns to a yellowish color and then usually disappears completely over the same period of time. These generally resolve completely without problems. The hematoma rarely requires drainage.

HOME CARE INSTRUCTIONS

- Apply ice to the injured area for 30 minutes four times a day for the first 48 hours. Place the ice in a plastic bag and place a towel between the bag of ice and your skin. Discontinue the ice if it causes pain.
- If bleeding is more than just a little, apply pressure to the area for at least thirty minutes to decrease the amount of bruising. Apply pressure and ice as your caregiver suggests.
- If the injury is on an extremity, elevation of that part may help to decrease pain and swelling. Wrapping with an ace or supportive wrap may also be helpful. If the bruise is on a lower extremity and is painful, crutches may be helpful for a couple days.
- If you have been given a tetanus shot because the skin was broken, your arm may get swollen, red and warm to touch at the shot site. This is a normal response to the medicine in the shot. If you did not receive a tetanus shot today because you did not recall when your last one was given, make sure to check with your caregiver's office and determine if one is needed. Generally for a "dirty" wound, you should receive a tetanus booster if you have not had one in the last five years. If you have a "clean" wound, you should receive a tetanus booster if you have not had one within the last ten years.

SEEK MEDICAL CARE IF:

- You have pain not controlled with over the counter medications. Only take over-the-counter or prescription medicines for pain, discomfort, or fever as directed by your caregiver. Do not use aspirin as it may cause bleeding.
- You develop increasing pain or swelling in the area of injury.
- An oral temperature above 102° F (38.9° C) develops, or as your caregiver suggests.
- You develop any problems which seem worse than the problems which brought you in.

SEEK IMMEDIATE MEDICAL CARE IF:

- You develop severe pain in the area of the bruise out of proportion to the initial injury.
- The bruised area becomes red, tender, and swollen.

MAKE SURE YOU:

- Understand these instructions.
- Will watch your condition.
- Will get help right away if you are not doing well or get worse.

Exhibit-A

ExitCare® Patient Information - MICHAEL ZZ WATTS - ID# 00002920604 - MR# 8346959

FOLLOW-UP INSTRUCTIONS

01-2 days: - ENT clinic (212)342-5000

ADDITIONAL NOTES AND INSTRUCTIONS

apply ice to area / take tylenol for pain as directed / augmentin 875mg 1 tab 2x a day for 7 days / if condition become worse, return to er / follow up with ENT clinic in 1-2 days for wound check

Document Released: 9/27/2008 Document Revised: 3/16/2010 Document Reviewed: 8/5/2009

New York Downtown Hospital Emergency Center • www.downtownhospital.org

Exhibit-A

ExitCare® Patient Information - MICHAEL ZZ WATTS - ID# 00002920604 - MR# 8346959

**NEW YORK
DOWNTOWN
HOSPITAL**

New York Downtown Hospital
Emergency Center
83 Gold Street
New York, NY 10038
212-312-5070

**EXITCARE® PATIENT INFORMATION
DISCHARGE INSTRUCTION SUMMARY**

Patient/Visit Information:

Patient Name: MICHAEL ZZ WATTS	Discharge Date/Time: 1/18/2013 01:50:26 AM
Attending Caregiver: Yao, Tse-Hwa	Diag:

Discharge Instruction Sheets Provided:

Bruise (Contusion, Hematoma)

Patient Instructions:

Additional Notes for Bruise (Contusion, Hematoma)

apply ice to area / take tylenol for pain as directed / augumentin 875mg 1 tab 2x a day for 7 days / if condition become worse
return to er / follow up with ENT clinic in 1-2 days for wound check

Followup Appointments/Instructions:

Primary Follow-up Information

01-2 days: - ENT clinic (212)342-5000

Exhibit-B

M. 11-11-13
10-10 HAZEN ST. (C-76)
EAST/MAHURST, N.Y. 11370

13CV5636

QV

New York City Dept of Investigation
P.O. Box 152
Canal Street Station
New York

TR. BOND OF \$ 2
BRYN-MNR-S-TATEW. IN
02 APR 2013 PM 5 1



NIXIE

100 4E 1

01 05/13/13

RETURN TO SENDER
ATTEMPTED - NOT KNOWN
UNABLE TO FORWARD

*2109-03938-02-40

1001330132

Exhibit - C

Exhibit-C

Michael Watts #349-13-01202
10-10 Hazen St. (C-76)
East Elmhurst, N.Y.

April 29, 2013

11370

To whom this may concern

I'm writing this letter about a police incident that happen on Jan. 17, 2013 at the 79th precinct in Brooklyn when I was set up to be robbed by Loquita Lewis aided by her brother David Lewis and a N.Y.C. Police name Joe that worked that day in the 79th precinct. The police raided my house at 405 Throop ave. early that morning I rember the police removing my house and car keys from my pockets along with my money. I asked for a voucher for my keys and never received one. Shawntay Maynor and Loquita Lewis had also been arrested with me that day. Some how Loquita Lewis ended up with a cell phone and called her brother David Lewis who robbed my house before her and Shawntay Maynor was released, some how the police had found out that Loquita

Exhibit-C

Lewis was making phone calls with out their assistance and moved her into a cell by the finger print machine a short while later I was moved also to a cell in that same room she asked to speak to a police officer by his first name that was working named Joe about 30 minutes later she came back telling Shounway that they were being released I wasn't able to make a call until I got to Brooklyn House that's when I found out from Shounway that my house had been robbed and by who Peter, on about a week later or two later my car was stolen when the car was found Leguigo's Brother's girlfriend was driving it and got arrested then Peter on during a phone conversation via Rikers Island phone I found out that the police name Joe was a date of Leguigo Lewis since 18 yrs. old and he was going to house the car she stole in his garage all this information can be backed up by actual phone conversations from Rikers Island.

Thank You
Mike Webb

Wells # 14-13-12340
20 Hazen Street
E. Elmhurst, N.Y. 11370

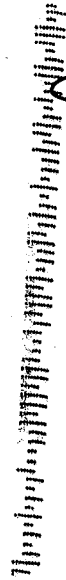


MAR 13 2014

PRO SE

United States Courthouse
Southern District of New York
500 Pearl Street
New York, N.Y.C. 10007

1000731330



PRO-SE OFFICE